

## CURRICULUM VITAE



### Personal Data

|                  |                                                                  |
|------------------|------------------------------------------------------------------|
| Name             | : CS RAKESH SINGH                                                |
| Current Address  | : Flat No. C-1209, Mantri Synergy, Padur (OMR), Chennai 603103   |
| Email            | : <a href="mailto:tocsrakesh@gmail.com">tocsrakesh@gmail.com</a> |
| Mobile No.       | : 9999708060                                                     |
| Date of Birth    | : 25.08.1982                                                     |
| Marital Status   | : Married                                                        |
| Joining Time     | : 90 days                                                        |
| Total Experience | : More Than 15 years in Corporate Secretarial & Legal            |

### Education

- Certification in forensic audit from ICSI & KPMG in the year 2020.
- LLB from Chaudhary Charan Singh University in the year 2012.
- Company Secretaryship (CS) from the Institute of Company Secretaries of India in the year 2007 (presently FCS).
- B.Com (Dyal Singh College) from the University of Delhi in the year 2002.
- 12<sup>th</sup> in commerce stream from CBSE (Kendriya Vidyalaya) in the year 1999.

### Career Timeline

- Financial Software and Systems Private Limited, designated as AVP-Company Secretary from May 2021 to date.
- OPG Power Group (BSE Listed), designated as Company Secretary in one of the Group Companies from Oct 2020 to May 2021.
- Provided Secretarial & Legal Services to various Listed & Unlisted Companies as a freelancer and acted as ICSI Visiting faculty from Feb 2014 to Sep 2020.
- Religare Health Insurance Company Limited (Listed Group) designated as Company Secretary from Aug 2013 to Jan 2014.
- Moser Baer India Limited (Listed Group) designated as Assistant Manager Legal & Secretarial from July 2011 to Aug 2013.
- Sistema Shyam Teleservices Limited (MTS) (Listed Group) designated as Senior Specialist-Corporate Governance from Jan 2011 to June 2011.
- Mount Shivalik Industries Limited (Listed in BSE) designated as Company Secretary from May 2008 to December 2010.

### Work Experience

#### **CORPORATE SECRETARIAL WORK**

Well-versed with corporate secretarial-related work for Listed and unlisted Companies, Private Equity funded and Joint Venture Companies. Work-related to the incorporation of the Company, making a Joint Venture, drafting Shareholder Agreement, alignment of Articles of Association with Shareholders Agreements, and Compliance of Shareholders/Joint Venture Agreement. Fundraising through private placement and related activities like due diligence, drafting related agreements, allotment/transfer of shares, necessary filing under FEMA (in case of FDI) and RoC, issuing share certificates, payment of stamp duty, etc. Other Corporate Secretarial work like calling Board, Committee, and Shareholders meetings and related ancillary and incidental work. Shareholders-related communications, dividend-related work, Employee Stock Option-related work, Stock Exchange Compliance, Insider Trading compliances, SEBI takeover code compliances. Coordination with Registrar and Transfer Agent (RTA), NSDL & CDSL on various information and matters. Provide support in closing Statutory Audit, Internal Audit, Secretarial audit, etc. Coordination of Overseas Consultants for Overseas subsidiaries work, like filing of financials and tax returns, change in directors, and other necessary event-based filing as and when required along with maintaining records of all subsidiaries in India. Details are given hereunder:

## ▯ **Incorporation of Company**

- Incorporation of Company and work relating to pre-incorporation and post incorporation like getting name approval, finalizing MoA, AoA, acquiring the digital signature of subscribers to Memorandum of Association, arranging NOC from the owner for Registered office address, address proof & identity proof of subscriber of MoA, DIN of first directors, coordination with PCS for filing SPICE+ form, replying to ROC if any queries raised; in case of wholly owned subsidiary taking nominee's declaration in from MGT-4, Mgt-5, and filing form MGT-6; Appointment of first auditor in first Board Meeting after incorporation, opening of bank account, receiving money from subscriber to MoA, Issuing share certificates, filing form 20A, maintaining statutory registers etc.

## ▯ **Board Meeting & Committee Meeting related work**

- Informing the Chairman about the requirements of the Board/Committee Meeting and finalizing the date of the Board Meeting after checking the availability of other Board Members.
- Informing other departments about the next meeting date, so that they can send the details of approval required from the Board/committee for various works relating to respective departments.
- Drafting notice and agenda of the meeting and finalizing with the Chairman.
- Post approval of notice & agenda from the Chairman, circulating the same to the Board/ Committee Members.
- Coordination with admin, IT, and another department for Video Conferencing, and logistics arrangement got the Meeting.
- Ensuring sitting fees were paid to non-executive directors who attended the meeting.
- Drafting minutes of the meeting, finalizing with the Chairman, circulating the same with other members of Board/Committee for their comments, getting final minutes signed by the Chairman, circulating certified true copies of the signed minutes to the Board/Committee members and finally placing the same in next Board/Committee meeting for noting.

## ▯ **Annual Report and General Meeting related work**

- Drafting Notice of General Meeting(AGM/EGM) with notes and explanatory statement.
- Drafting the Directors Report along with its applicable annexures.
- Coordination with other departments for completion of the Annual Report and sending the same to the Chairman for approval.
- Approval of Notice with required resolutions, Annual Report, the appointment of Scrutinizer, the cut-off date for the e-voting facility, etc. from the Board of Directors.
- Coordination with Registrar and Share Transfer Agent (RTA) and NSDL/CDSL for obtaining benpos, providing e-voting facility, etc.
- Fixing record date, newspaper advertisements, dispatching notices, and Annual Reports to the shareholders.
- Convening General Meetings (Physical or Virtual) and submitting proceedings of the meeting and uploading the same on the website of the Company.
- Announcement of the result of e-voting and display the same on the notice board and website of the Company.
- Drafting minutes of General Meeting(s).

#### ▯ **Dividend declaration-related work**

- Sending information to the stock exchange about the board meeting where the dividend is proposed.
- Closing trading window and intimation to the stock exchange.
- Getting recommendations of dividends from the Board of Directors, fixation of the record date, opening of bank account for payment of dividend and unpaid dividends, fixation of date, time, and place of Annual General Meeting.
- Intimation to the stock exchange and newspaper advertisement for the record date.
- Coordination RTA to get details of shareholders based on the record date and banks for transfer of funds, transferring unpaid dividend amount to separate accounts, printing of dividend warrants/cheques.
- Entertaining dividend requests from the shareholders who did not claim dividends as and when received.
- Transferring unclaimed dividend amount to IEPF following the due process.

#### ▯ **Forms filing, statutory registered related work**

- Ensuring timely filing and Annual Return (Form MGT - 7).
- Ensuring timely filing of Balance Sheet (Form AOC-4 and Form-4 XBRL).
- Filing various forms comes under day-to-day events like Form CHG-1, CHG-4, DIR-12, MGT-14, INC-23, CG-1, INC-28, DPT-3, ADT-1, MSME-1, DPT-3, PAS-3, PAS-6, DIR-3 KYC, etc.
- Maintaining of various statutory registers including minutes books of board meetings, committees meetings, shareholders' meetings, attendance registers, register of directors' shareholding, register of contracts in which directors are interested, share transfer register, register of directors & key managerial personnel's, register of members, etc. pursuant to the Companies Act.

#### ▯ **Fundraising related work**

- Involved in raising INR200 crores through Right Issue of Sistema Shyam TeleServices Ltd.
- Raised INR40 crores from Promoters of the Moser Baer through preferential allotment.
- Raised INR150 crores from Private Equity investors through preferential allotment.
- Raised INR30 crores through the sale of one of the group companies of OPG to POTHY.
- Appointment of investment bankers/consultants/experts for fundraising-related activities, signing NDAs and Engagement Letter/Agreement in consultation with management.
- Collating documents required for due diligence.
- Updating the Board of Directors on progress and getting necessary approvals from the Board.
- Finalizing Share Purchase Agreement and Shareholders Agreement.
- Alteration of Memorandum and Articles of Association in accordance with Shareholders Agreement,
- Filing necessary forms under FEMA (in case of FDI) and MCA, issuing necessary certificates, change in the composition of board and per Shareholders Agreement, and other routine compliance-related work.

#### ▯ **Employee Stock Option related work**

- Allotment of shares under ESOP of the Company with intimation to Stock Exchanges.
- Raising corporate action with NSDL and CDSL in coordination with RTA.
- Taking a Certificate from CA or CS for receiving money with respect to shares.
- Issue of share certificate in respect of shares allotted in physical form (if any).
- Submitting documents and taking Listing Approval from different Stock Exchanges.
- Filing ROC PAS-3 form for allotment of shares.
- Filing form FC-GPR if shares are allotted to NRI or Foreign National.

#### ▮ **Stock Exchange/SEBI compliance-related work**

- Quarterly LODR Compliances i.e., Shareholding pattern, Corporate Governance Report, Declaring Quarterly Results, Limited Review Reports.
- Submitting Disclosure under Regulation 8(3) of SEBI Takeover Code.
- Half Yearly LODR Compliances.
- Filing Annual Report to the Stock Exchange within the statutory time limit.
- Filing the outcome of the Annual General Meeting to the Stock Exchange and to ROC within the time limit.
- Inter-se transfer between Indian and Foreign promoters with due compliance of the SEBI Takeover Code.
- Compliance with various responsibilities as entrusted under the code of conduct for senior management and the code of conduct for the prohibition of insider trading.
- Payment of Listing Fees to Stock Exchanges and Annual Custodian Fees to NSDL and CDSL.
- Publication of Notice of Board Meeting and Financial results in Newspaper.
- Keeping track of the shareholders' complaints filed on the SCORES Website and taking necessary steps to resolved them.

#### ▮ **FEMA/RBI compliance-related work**

- Ensuring timely filing of Annual Return of Foreign Liabilities & Assets (FLA Return) on or before 15th July.
- Filing Advance Reporting Form (ARF) to RBI through an Authorized Dealer within 30 from the date of receipt of the amount.
- Filing Form-FCGPR to RBI within 30 days from the date of allotment of shares to NRI or Foreign National.
- Arranging copy of FIRC from AD and other documents required for filing Forms>Returns.
- Filing Form TC-TRS in case of transfer of shares to a Foreign National or Non-Resident Indian.
- Filing APR in form ODI II to AD Bank in respect of JW/WOS outside India on or before December 31<sup>st</sup> every year after certification from the Auditor of the Company.

#### ▮ **Policy Formation and its Awareness-related work**

- Drafted and periodically updated key company policies and charters, including Corporate Responsibility Policy, Dividend Policy, Nomination and Remuneration Policy, Audit Committee Charter, POSH Policy, and Code of Conduct, ensuring compliance with regulatory requirements and alignment with corporate governance best practices.
- Promoted policy awareness across the organization by embedding mandatory policy learning modules into the HRMS platform and ensuring employee familiarity with internal policies through regular communication and training initiatives.

#### ▮ **Other day-to-day and event-based secretarial work**

- Appointment/reappointment of directors of the company and related compliances.
- Annual disclosure of interest from Directors (DIR-8 and MBP-1) and placing before the board for noting.
- Appointment of auditor on a rotation basis and related compliances.
- Coordination with Statutory, Secretarial, and Internal Auditors of the Company for completing statutory, secretarial, and internal audits of the Company.
- Arranging Due Diligence Report for banks to comply with loan covenants.
- Providing secretarial support to other departments on a regular basis, giving a certified true copy of resolutions, list of directors, list of shareholders, shareholding pattern, statutory filed forms, etc.

## **CORPORATE LEGAL WORK**

### **Litigation/Arbitration related matters**

- ▢ Manage all aspects of matters relating to litigation/Arbitration
- ▢ Meeting the External counsel of the Company on different matters and briefing them on the matter in detail with documents.
- ▢ Sending Legal notices in consultation with the External Counsel of the Company
- ▢ Collating all documents required for filing a statement of claim/defense.
- ▢ Drafting Statement of Claim/Defense/pleadings along with all necessary exhibits with the Company's counsel.
- ▢ Drafting Rejoinder, Opening Statement with the Company's counsel.
- ▢ Briefing Senior Counsel to represent the Company in the hearing.
- ▢ Providing inputs and assistance to the counsel in drafting an Emergency Interim Application (if the company decides to file) with all necessary exhibits.
- ▢ Attending Case Management Conference with counsel for Procedure Order to decide on Procedure Timeline,
- ▢ Collating documents to share, as per document request, with other parties as per Procedure Order timeline.
- ▢ Represent the Company in Court/Arbitration hearings.
- ▢ Updating management about the status of the case from time to time on each development.
- ▢ Updating the management about the status of different cases filed by or against the company.

### **Extension of AGM, Compounding of Offence, Condonation of delay, etc related work**

- Preparing compounding application, filing form GNL-1, coordinating with the secretarial auditor, appearing before the Regional Director and paying fine, and filing form INC-28.
- Drafting and filing of a petition for Condonation of delay under section 460 of the Companies Act to ROC through e-form CG-1, coordination with authorities, getting delayed condoned, paying condonation fees, and filing form INC-28.
- Drafting and filing application for extension of Annual General Meeting to ROC through form GNL-1, meeting ROC in person and explaining the reason along with submitting other documents, if required, to get the approval for extension of AGM.

### **Day to Day-to-day legal matters**

- | Drafting and vetting various agreements and deeds.
- | Keeping records of various legal communications.
- | Drafting Affidavit, Indemnity, Power of Attorney, etc.
- | Drafting application and petition for filing it with the Central Government for Condonation of delay.
- | Preparing a compliance checklist of various agreements and JV for timely compliance with respective clauses.
- | Issuing legal notice under breach of covenants, bond jumping cases, section 138 of the Negotiable Instrument Act, within the statutory time limit.
- | Other routine work of the department.

## **COMPLIANCE RISK MANAGEMENT TRACKING SOFTWARE**

- ▢ Implemented Compliance Tracker and took charge of its administration to mitigate compliance risk.
- ▢ Sending monthly information to the owner, and reviewer of the software tool of all respective departments about the applicable compliance of the month at the beginning of each respective month and the last week of the month to avoid non-compliance.
- ▢ Coordination with the Vendor to update the software with recent amendments/notifications.
- ▢ Sharing periodic compliance status reports with the management.
- ▢ Coordination with the Internal as well as Statutory Auditor for the Compliance report-related work.
- ▢ Keeping track of the invoices raised by the vendor and their timely payment.

### **TEAM MANAGEMENT**

- ▯ Managed 2-3 members of the team.
- ▯ Fixing KRAs of the team members based on their position, experience, and expectations of the department.
- ▯ Constantly reminding them to update the HRMS about the challenges they faced and the results they achieved.
- ▯ Acknowledging and appreciating their efforts and contributions to the department.
- ▯ Encouraging them and providing opportunities to take on new assignments.
- ▯ Ensure free flow two-way communication exists in the department.
- ▯ Performance evaluation and submitting the same with a recommendation to the next authority.

### **Technical Skills**

- Known Office Package: MS Office, Microsoft Outlook 365.
- Known Operating Systems: Windows, latest version.

Reference can be provided if needed.

Sd/  
CS Rakesh Singh